

6. Right to Certain Freedom Under Article 19

6.1 Introduction

- The Constitution of India gives the **Right to Freedom**, mentioned in **Articles 19, 20, 21A, and 22**.
- At first, **Article 19 had seven rights**. But later, the **right to own, keep, and sell property** was **removed by the 44th Amendment Act in 1978**.
- Now, only **six rights** remain. These six rights can be **used only against the government**, not against private people. Also, these rights are only for **Indian citizens** and **company owners** (shareholders). **Foreigners** or **companies** (like corporations) **cannot use these rights**.
- These **freedom rights are very important**. They are the **main rights** in the Constitution and help make **democracy meaningful**.

6.2 Article 19 – Right to Freedom

As per Article 19, the following six freedoms are given to every person in India:

1. **Freedom of speech and expression**
2. **Freedom to assemble peacefully without weapons**
3. **Freedom to form groups or unions**
4. **Freedom to move freely in any part of India**
5. **Freedom to live or settle anywhere in India**
6. **Freedom to do any job, business, or profession**

Freedom of speech and expression

▶ Every citizen can gather peacefully without weapons. This includes holding public meetings, marches, and processions. But it must be peaceful and without arms.

▶ This does **not allow** violent or noisy groups, or ones that disturb peace or use weapons.

▶ It also **does not include the right to strike**.

▶ Every citizen has the right to **express their thoughts freely**.

▶ The government can **limit this freedom** in certain cases like:

- To protect the country's security and unity
- For good relations with other countries
 - To maintain peace and order
 - To stop insults to the court or encouraging crime

Freedom to assemble

- ▶ All citizens can create **unions or co-operative societies**.
- ▶ This includes making **political parties, clubs, societies, or trade unions**.
- ▶ This right means:
 - You can **start** or **continue** a group or union.
 - But the **right not to join** a group is **not protected**.
 - The government can **restrict this right** for the safety and unity of the country.

Freedom to move freely

- ▶ Every Indian citizen has the right to **move freely** across the whole country.
 - ▶ But, the **government can limit** this freedom **if it is necessary for public safety or interest**.
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Freedom to reside and settle

- ▶ Citizens of India have the right to **live and settle anywhere** in the country.
 - ▶ However, the **government can put limits** to protect the **general public** or **tribal areas (Scheduled Tribes)**.
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Freedom to practice any profession or to carry on any business, occupation, or trade

- ▶ Every person can **do any job, trade, or business**, but it must **not be harmful or wrong (immoral)**.
 - ▶ Some **jobs need special skills or qualifications**, so a person must be **qualified before doing them**.
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Restriction on Right to Freedom

- ▶ Equal rights for all people means that **some limits** are needed. So, the **government can put reasonable restrictions** on these rights.

▶ **Freedom to assemble** has two conditions:

- People must gather **peacefully**
- People must **not carry weapons**
 - ▶ *Exception:* Sikhs can carry '**Kirpan**' as part of their religion.

▶ In the **USA**, people have the right to carry weapons. But in **India**, this is **not allowed** because of public safety.

▶ The **right to form groups or unions** does **not allow anyone to plan crimes** against individuals, groups, or the government.

▶ The **right to move or settle** anywhere does **not allow entering private homes or restricted areas**.

▶ The government can limit this right to **protect tribal communities**.

▶ The **right to do any job or business** is also **limited**:

- The work must **not harm society**
- The government can ask for **special qualifications** for some jobs
- The government can also run businesses itself (like LIC, Bank, railways) even if it limits others

Power of Courts to Enforce Freedom of Citizens of India

▶ Every Indian citizen can go to the **High Court** or **Supreme Court** to protect their freedom.

▶ Courts can issue **Habeas Corpus** – an order that protects against illegal arrest.

▶ Courts can **call a person to court** and **free him** if his arrest has **no legal reason**.

Rights to Freedom during National Emergency

▶ During a **National Emergency**, the **freedom rights under Article 19** can be **stopped (suspended)** by the **President of India**.

▶ During this time, even the **right to go to the Supreme Court** for protecting personal freedom can be **taken away**.

Right to Information (RTI)

▶ **Article 19(1)** of the Constitution made **RTI (Right to Information)** a **fundamental right** in 2005.

▶ Every citizen has the **freedom of speech and expression** under this Article.

▶ People also have the **right to know** how the government functions, what it does, and what roles it plays.

6.3 Article 22 – Protection Against Arrest and Detention in Certain Cases

▶ **Article 22** protects people against **wrongful arrest or detention**.

▶ The Constitution gives the following **safety rules (safeguards)** against arrest:

- The reason or **cause of arrest must be told** clearly.
 - The person has a **right to a lawyer of their choice**.
 - The arrested person must be **brought before a Magistrate within 24 hours**.
 - A person **cannot be kept in custody for more than 24 hours** without permission from a Magistrate.
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▶ These protections are **not available** to:

- **Enemy nationals** (enemy of the country)
 - People held under **preventive detention** (held without trial to stop possible future crime)
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▶ **Rules for Preventive Detention:**

- A person can **only be detained for a maximum of 3 months**.
- The officer **must explain the reason for detention**.
- The detained person must be given a **chance to explain or defend themselves**.
- People held under **preventive detention** (held without trial to stop possible future crime)